

**LAW & MOTION CALENDAR
TENTATIVE RULINGS**

May 14, 2026

**Judge Melissa R. McCormick
Dept. CX105**

Department CX105 hears law and motion on Thursdays at 2:00 p.m.

Court reporters: Official court reporters typically are not provided in this department for any proceedings. If the parties desire the services of a court reporter, the parties should follow the procedures set forth on the court's website at www.occourts.org.

Tentative rulings: The court endeavors to post tentative rulings on the court's website by 9:00 a.m. the day of the hearing. Tentative rulings may not be posted in every case. Please do not call the department for tentative rulings if tentative rulings have not been posted.

Submitting on tentative rulings: If all parties intend to submit on the tentative ruling and do not desire oral argument, please advise the courtroom clerk or courtroom attendant by calling (657) 622-5305. Please do not call the department unless all parties submit on the tentative ruling. If all parties submit on the tentative ruling and so advise the court, the tentative ruling will become the court's final ruling, and the prevailing party shall give notice of the ruling.

Appearances and public access: Appearances, whether in person or remote, must comply with Civil Procedure Code section 367.75, California Rule of Court 3.672, Orange County Superior Court Local Rule 375, and Orange County Superior Court Appearance Procedure and Information—Civil Unlimited and Complex (pub. 9/9/22).

Unless the court orders otherwise, remote appearances will be conducted via Zoom. All counsel and self-represented parties appearing via Zoom must check in through the court's civil remote appearance website before the hearing begins. Check-in instructions are available on the court's website.

The public may attend hearings by coming to court or via remote access as described above.

Photographing, filming, recording and/or broadcasting court proceedings are prohibited unless authorized pursuant to California Rule of Court 1.150 or Orange County Superior Court Local Rule 180.

Non-appearances: If nobody appears for the hearing and the court has not been notified that all parties submit on the tentative ruling, the court shall determine whether the matter is taken off calendar or the tentative ruling becomes the final ruling. The court also might make a different order. See *Lewis v. Fletcher Jones Motor Cars, Inc.* (2012) 205 Cal.App.4th 436, 442 n.1.

NO.	CASE NAME	MATTER
1	Ayala v. Carter Shipping Services LLC 2022-01268249	<u>Plaintiffs' Motion for Final Approval of Class Action and PAGA Settlement</u> The court has reviewed and considered the papers filed in support of plaintiffs' motion for final approval of a \$100,000 class action and PAGA settlement. The court grants the motion as follows: \$5,000.00 for enhancement awards to each plaintiff (total \$10,000.00);

		\$30,000.00 for attorneys' fees; \$12,362.35 for litigation costs; \$10,000.00 for settlement administration costs; and \$5,000.00 total PAGA penalties (\$3,750.00 to the LWDA). The final accounting hearing is scheduled for <u>January 14, 2027 at 9:00 a.m.</u> in Department CX105. Plaintiffs shall submit a final accounting report at least 9 court days before the final accounting hearing regarding the status of the settlement administration. The final report must include all information necessary for the court to determine the total amount actually paid to class members and aggrieved employees and any amounts tendered to the State Controller's Office under the unclaimed property law. Plaintiffs are ordered to give notice, including to the LWDA, and to file a proof of service.
2	Barragan v. California Mantel & Fireplace, Inc. 2021-01193396	Off calendar.
3	Barragan v. California Mantel & Fireplace, Inc. 2021-01235971	Off calendar.
4	Chavez v. RBA Builders, Inc. 2022-01259829	<u>Plaintiff's Motion for Preliminary Approval of Class Action Settlement</u> The court has reviewed and considered the papers, including the supplemental papers, filed in support of plaintiff's motion for preliminary approval of a \$400,000 class action settlement. The court has the following questions and comments: 1. In the August 14, 2025 order (ROA 103), the court noted that paragraph 3.2.2(a) of the settlement agreement stated that "all payroll taxes, including employer payroll taxes, will be paid out from the Gross Settlement Amount." Settlement Agreement ¶ 3.2.2.(a). The court stated that this provision was inconsistent with other paragraphs of the settlement agreement (e.g., ¶¶ 1.21, 1.25) and inconsistent with the notice (e.g., §§ 3(1), 3(2)). The court stated that if the parties nevertheless propose to have "all payroll taxes, including employer payroll taxes" paid from the gross settlement amount, the parties must: (i) state specifically which taxes are proposed to be included in "all payroll taxes"; (ii) state the estimated amount of the deduction from the gross settlement amount for "all payroll taxes, including employer payroll taxes"; and (iii) explain why that deduction from the gross settlement amount is appropriate as the employment tax obligation is generally the employer's independent responsibility. In the supplemental filing, plaintiff states that the parties have agreed that defendant's employer payroll taxes shall be paid from the gross settlement amount. Supp. Moon Decl. (ROA 126) at 1:24-2:16. Plaintiff cites <i>Cifuentes v. Costco</i>